bge®
AN EXELON COMPANY

EmPOWER MARYLAND

Participating Service Provider Co-Branding Guidelines

BGE invites Participating Service Providers in good standing to use the BGE name and logo on promotional materials. Use requirements are outlined in the Guidelines and Terms and Conditions below. All materials must be submitted for BGE's review and approval to **business@BGESmartEnergy.com**. Upon email approval, Participating Service Providers may begin disseminating materials.

Guidelines for use of BGE content

1. **First reference of company name.** When mentioning the program, the first instance of "BGE" must be spelled out, with the acronym in parentheses: "Baltimore Gas and Electric Company (BGE)." Note that BGE does not use the ampersand (&) symbol.

   Proper first references to BGE and its programs:
   - **A.** Baltimore Gas and Electric Company (BGE) Energy Efficiency
   - **B.** Baltimore Gas and Electric Company (BGE) Energy Solutions for Business Program, Small Business Energy Solutions Program, Quick Home Energy Check-up Program or Building Performance Tune-up Program

2. **Use of the apostrophe.** You may refer to the program in one of two ways:
   - **A.** BGE Energy Efficiency
   - **B.** BGE's specific program name

3. **Correct program name.** Do not use "Smart Energy," "Energy Savers" or "Smart Energy Savers." References to the program must always include the whole sequence: "BGE Energy Efficiency" or "BGE's (specific program name)."

4. **Promoting discounts and incentives.** When promoting discounts or incentives, please refer to **BGESmartEnergy.com** to ensure that the most accurate discounts and incentives and their requirements are reflected in your materials. All equipment advertised as part of BGE Energy Efficiency must first be approved by ICF. Include in your materials that the incentives are provided by or through "BGE Energy Efficiency" and not simply "Baltimore Gas and Electric Company" or "BGE."

5. **Use of "free" is prohibited.** When referring to on-site energy analysis of the customers' energy use, do not refer to this analysis as "free." You may refer to this as an "on-site energy analysis" or "on-site energy analysis at no additional cost." Customers pay for these programs as part of the EmPOWER Maryland charge on their bill, so the word "free" may not be used.

6. **Participating Service Providers.** Participating Service Providers are approved or certified through BGE Energy Efficiency, not BGE or Baltimore Gas and Electric Company.

7. **Program website.** When referring to the BGE Energy Efficiency website, use "BGESmartEnergy.com" and omit "www."

8. **Program phone number.** When including the program's phone number in print, online or in other materials, please use the following number with dashes between the numbers: 410-290-1202. Do not include a "1" at the beginning of the phone number.

9. **Email signatures.** When creating an email signature, please format as follows:

   Joā Smith
   BGE Energy Efficiency
   Participating Service Provider
   Company Name | Title
   Applicable Contact Information

   Note: The Participating Service Provider's business name must be placed on the line after BGE Energy Efficiency, and the employee's title must be placed after the Participating Service Provider's business name to ensure clarity that the contact is employed by the Participating Service Provider rather than BGE Energy Efficiency.

10. **BGE Energy Efficiency ENERGY STAR® references.** When using the U.S. Environmental Protection Agency's registered trademark, "ENERGY STAR®," the term must always be in all capital letters, and the first instance of "ENERGY STAR®" in each document must always include the "®" symbol. Subsequent references in the document may exclude the "®" symbol.

Guidelines for use of BGE Energy Efficiency logo

Participating Service Providers may only use the below logo options (collectively referred to as "Logo") with the understanding that such use is subject to the "Terms and Conditions of Logo Use" detailed on the following pages. Participating Service Providers may not use any other version of the BGE logo other than the logo options identified below.

Participating Service Provider logo options

Horizontal Color Logo

Horizontal Grayscale Logo

Horizontal Reversed Logo
(used when on top of a colored background)

Vertical Color Logo

Vertical Grayscale Logo

Vertical Reversed Logo
(used when on top of a colored background)

Terms and Conditions of Logo use

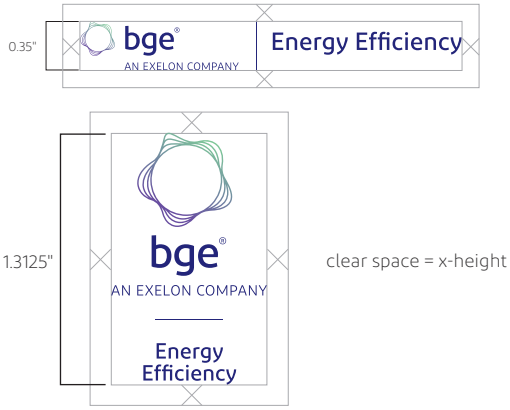
The following Terms and Conditions must be followed for all uses of the program Logo:

1. The Logo may not be used in any manner that might imply that any non-Baltimore Gas and Electric Company materials, including but not limited to goods, services, websites or publications, are sponsored, endorsed, licensed by or affiliated with Baltimore Gas and Electric Company.
2. The Logo may not be displayed as a primary or prominent feature on any non-Baltimore Gas and Electric Company materials. Companies using the Logo pursuant to these guidelines must also display in the primary and more prominent position, their own logo(s), business name, product names or other branding.
3. The Logo may not be imitated in any manner.
4. The Logo may not be used in a manner that would disparage Baltimore Gas and Electric Company or its products or services.
5. The Logo must be used as provided by Baltimore Gas and Electric Company in these materials with no changes, including but not limited to changes in the color, proportion or design, or removal of any words, artwork or trademark symbols. The Logo may not be animated, morphed or otherwise distorted in perspective or appearance. The Logo may not be rotated or reversed.
6. Baltimore Gas and Electric Company shall have the right to review and approve any use prior to publication and to inspect samples of the use of the Logo to ensure compliance with these terms. Permitted companies must use only approved Baltimore Gas and Electric Company Logo artwork, including, but not limited to, colors, measurements and proportions.
7. To properly stage the Logo, the minimum size and clear space guidelines must be used, and other elements must be maintained as outlined.

   Minimum size

   In order to protect the legibility and the integrity of the Logo, a minimum size has been established. The minimum size requirement is based on the height of the Logo and applies to all versions. Never present the Logo in a size smaller than the minimum size shown below.

   Clear space



   Another way to ensure the legibility and integrity of the Logo is to surround it by as much clear space as possible. The clear space is equal to 50% of the height of the symbol of the horizontal logo and 25% of the height of the symbol of the vertical logo, as shown. This area should remain clear of other text or graphic elements. While this measurement represents the minimum requirement, the clear space surrounding the logotype may be increased if layout permits.

8. The Logo must stand alone and may not be combined with any other object, including but not limited to other logos, words, graphics, photos, slogans, numbers, design features or symbols within the clear space requirements of the Logo. The Logo must never be used to represent the "Baltimore Gas and Electric Company" in text, including in a headline, product name logotype or body copy.
9. The Logo and/or the Baltimore Gas and Electric Company name must not be incorporated or used in any manner as part of or in close proximity to another company's name, domain name, product or service name, website title, publication title, logo, trade dress, design, slogan, trademarks or any potentially confusing variation thereof. The Logo must never appear with any other symbol or icon (except the appropriate trademark or registered trademark symbol); be contained within a box, circle or other shape; or be combined with any other name, logo or icon to create a co-branded logo.
10. Non-Baltimore Gas and Electric Company materials should not mimic any Baltimore Gas and Electric Company advertising, packaging, website design or other materials.
11. Under no circumstances may third parties use, imitate or play off of any Baltimore Gas and Electric Company taglines. The taglines are reserved for exclusive use by Baltimore Gas and Electric Company.
12. You agree not to copy, reproduce, download, disseminate, publish or transfer content in any form or by any means, except with prior written permission from Baltimore Gas and Electric Company and in accordance with the Terms and Conditions.
13. You acknowledge Baltimore Gas and Electric Company's ownership of the copyright and all other intellectual property rights to this site and all materials provided on this site unless otherwise expressly indicated, and all right, title and interest in and to the Logo. You further agree that you shall not acquire any rights in the Logo, except as specifically provided herein. You acknowledge that there is significant goodwill associated with the Logo. You further agree and acknowledge that use of the Logo shall inure exclusively to Baltimore Gas and Electric Company's benefit. You agree that you will not at any time apply for any registration of any other trademark, service mark or other registration that would limit or otherwise affect the ownership of the Logo, nor file any document with any governmental authority to take any action that would affect the ownership of the Logo. You shall not commit, or cause any third party to commit, any act challenging, contesting or in any way impairing or attempting to impair Baltimore Gas and Electric Company's right, title and interest in and to the Logo.
14. Baltimore Gas and Electric Company may, in its sole discretion, limit the quantities of products or other materials that bear its marks. Certain types of projects, products and packaging may require additional or different notices. Please contact us for more information and to discuss your intended use.
15. Baltimore Gas and Electric Company reserves the right in its sole discretion to terminate or modify permission to display the Logo, and may request that third parties modify or delete any use of the Logo that, in Baltimore Gas and Electric Company's sole judgment, does not comply with these guidelines, or might otherwise impair Baltimore Gas and Electric Company's rights in or to a Logo. Baltimore Gas and Electric Company further reserves the right to object to unfair uses or misuses of its trademarks or other violations of applicable law.
16. Baltimore Gas and Electric Company intellectual property included in these materials, including, but not limited to the Logo, is protected by U.S. and international copyright and trademark laws. You agree to indemnify and hold harmless Baltimore Gas and Electric Company and its affiliates and their respective officers, directors, employees and agents from any claims, losses, liability costs and expenses (including, but not limited to attorneys fees) arising directly or indirectly from your activities in connection with the use of the Logo and from your violation of these guidelines, state or federal laws or regulations or any third party's rights.

TO THE MAXIMUM EXTENT PERMITTED BY LAW, BALTIMORE GAS AND ELECTRIC COMPANY SHALL HAVE NO LIABILITY UNDER THESE GUIDELINES OR OTHERWISE FOR DIRECT, CONSEQUENTIAL, EXEMPLARY, SPECIAL, INDIRECT, INCIDENTAL OR PUNITIVE DAMAGES, INCLUDING (WITHOUT LIMITATION) ANY LOST PROFITS OR LOST SAVINGS, EVEN IF IT HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. NOTWITHSTANDING ANY OTHER PROVISION HEREIN, THE LIABILITY OF BALTIMORE GAS AND ELECTRIC COMPANY FOR ANY REASON AND UPON ANY CAUSE OF ACTION SHALL BE LIMITED TO THE AMOUNT PAID TO BALTIMORE GAS AND ELECTRIC COMPANY BY YOU PURSUANT TO THESE GUIDELINES. THIS LIMITATION APPLIES TO ALL CAUSES OF ACTION IN THE AGGREGATE, INCLUDING (WITHOUT LIMITATION) BREACH OF CONTRACT, BREACH OF WARRANTY, NEGLIGENCE, MISREPRESENTATIONS AND OTHER TORTS. THE PARTIES AGREE THAT THE REMEDIES AND LIMITATIONS HEREIN ALLOCATE THE RISKS BETWEEN THE PARTIES, AS AUTHORIZED BY APPLICABLE LAWS. THE LICENSE FEES, OR LACK THEREOF, ARE SET IN RELIANCE UPON THIS ALLOCATION OF RISK AND THE EXCLUSION OF CERTAIN DAMAGES AS SET FORTH IN THIS AGREEMENT.

Any dispute with respect to these materials or use of the Logo or the Baltimore Gas and Electric Company name shall be governed by the State of Maryland, excluding its conflicts of laws rules. All users who access these materials and use the Logo are subject to the exclusive jurisdiction of the state and/or federal courts of the State of Maryland. If any provision of these Guidelines is held to be invalid or unenforceable, such provision shall be struck and the remaining provisions shall be enforced. Baltimore Gas and Electric Company's failure to act with respect to a breach by you or others does not waive its right to act with respect to subsequent or similar breaches. All rights are reserved by Baltimore Gas and Electric Company.

By signing below, I agree that:

I am a Participating Service Provider in BGE Energy Efficiency and I agree to the Terms and Conditions for the use of the BGE Energy Efficiency Logo. The Participating Service Provider using the BGE Energy Efficiency Logo agrees to be bound by these Terms and Conditions.

Printed Name:		Date:
Company Name:		
Address:		
City:	State:	ZIP:
Email:		Phone:
Participating Service Provider Signature:		

Administrative Use Only

Date Requested by Participating Service Provider:

Date Submitted to Participating Service Provider:

Date Signed Agreement Received From Participating Service Provider:

Submit the Signed Form